

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

COOL LIVING LLC, *Complainant*

v.

ALPI U.S.A., INC. AND ALPI AIR & SEA A/S, *Respondents.*

DOCKET NO. 25-28

Served: July 14, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge.*

ORDER FOLLOWING STATUS CONFERENCE

On July 8, 2026, I issued an order directing the parties to appear at a status conference via Teams on July 14, 2026, at 10 am EDT. The conference was necessary to discuss a discovery dispute regarding Complainant's Motion for Extension of the July 13 Deadline to Depose Michael Haahr Hansen filed July 8, 2026 (Dkt. 35) and Respondents' opposition to the relief requested.

Both parties appeared and participated at the status conference during which an audio recording and transcript were made on Teams. The participants included: Christopher R. Nolan, Esq. counsel for Complainant; Tony Hopkins, officer and authorized representative of Complainant; Daniel Bang, Esq. counsel for Respondents, and Michael Kohler, Esq., counsel for Respondents.

At the status conference, the parties agreed to confer following the conference in an effort to formulate a plan to conduct the deposition of Michael Haahr Hansen in a manner that would allow for discovery to be completed in no more than 60 days and accommodates the scheduling needs of Respondents' counsel as well as Complainant's need to serve a subpoena on the witness with twenty day notice. The parties agreed to submit a joint status report no later than 6:00 pm EDT on July 17, 2026, that includes the following:

1. Whether the parties agree to the date, time, and location to take the deposition of Michael Haahr Hansen, and if so, provide that information.
2. Whether the parties agree to the manner in which the deposition will be taken or to stipulate in writing to a telephonic or remote deposition, and if so, provide that information.
3. Whether the parties agree that one of them will be responsible for securing a court reporter to be present with the witness at the location where the deposition is to be conducted in order to administer the oath and transcribe the testimony, and if so, to provide that information.

4. Whether Respondents' counsel are authorized to accept service of a subpoena on behalf of Michael Haahr Hansen, and if so, by what manner service can be accepted. If not, whether they can provide Complainant's counsel with the date, time, and location at which Michael Haahr Hansen will be present and available for personal service of a subpoena by a process server.

5. If Respondents' counsel are not authorized to facilitate service of a subpoena as described in paragraph 4 herein, provide a detailed description of the efforts Respondents are able to take in order to facilitate service of a subpoena on Michael Haahr Hansen.

6. The blackout dates on which Michael Haahr Hansen and Respondents' counsel are not available for deposition within the next 60 day period.

7. Whether the parties have agreed to request an extension of the discovery deadline and briefing schedule by a particular amount of time, and if so, provide that information.

Additionally, Respondents have agreed to submit for in camera review no later than **6:00 pm EDT on Friday, July 17, 2026**, the agreement under which Michael Haahr Hansen is subject to an ongoing cooperation clause that obligates him to assist Respondents in this proceeding.

Accordingly, it is

ORDERED that no later than **6:00 pm EDT on Friday, July 17, 2026**, the parties shall confer and submit a joint status report with the information described in this order; it is further

ORDERED that no later than **6:00 pm EDT on Friday, July 17, 2026**, Respondents shall submit the agreement obligating Michael Haahr Hansen to cooperate in this proceeding for in camera review.

An order on the pending motion shall be issued after the joint status report is filed.

MARY A. HERVEY -S

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HERVEY -S
Date: 2026.07.14 14:43:04 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge